

26STCV13033 26STCV13033

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F03%2F2026

Source SHA-256: 17003c52ac9545cfb29fbc6c9391f6783f6d62f249e4685f99a40a58740e434f

Case Number: 26STCV13033 Hearing Date: September 3, 2026 Dept: 512

HEARING DATE: Thurs., September 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Cruz v. City of Montebello, et al.

COMPL. FILED: 04-23-26

CASE NUMBER: 26STCV13033

NOTICE: OK

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendant

City of Montebello

RESP. PARTY: Plaintiff Sandra Cruz

DEMURRER

(CCP § 418.10.)

TENTATIVE RULING:

Defendant City of Montebello's Demurrer
to the Complaint is OVERRULED.

Moving

party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on August 20, 2026 ☐ Late ☐ None

REPLY: Filed

on August 25, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On April 23, 2026, Plaintiff Sandra Cruz ("Plaintiff") filed the instant action against Defendants City of Montebello; County of Los Angeles ("LA County"); State of California ("State of CA"); California Department of Public Works; Los Angeles Department of Water & Power ("LA Department of Water and Power"); California Water Service ("CA Water Service"); H N F I LP Lessor ("HNFILP"); and Starbucks Corporation ("Starbucks") ("Defendants") and Does 1-50, alleging a cause of action for General Negligence against CA Water Service, HNFILP, and Starbucks, and a cause of action for Premises Liability against CA Water Service, HNFILP, Starbucks, City of Montebello, County of LA, State of CA, California Department of Public Works, and LA Department of Water and Power.

On June 25, 2026, City of Montebello filed a Declaration of Demurring or Moving Party in Support of Automatic Extension.

On July 23, 2026, State of CA was

dismissed without prejudice.

On July 24, 2026, City of Montebello
filed the instant Demurrer to Plaintiff's Complaint (the "Demurrer").

On July 28, 2026, California
Department of Public Works was dismissed without prejudice.

That same day, the Court, in pertinent
part, continued the hearing date on the Demurrer to September 3, 2026, and
ordered Plaintiff to give notice. (7/28/26 Order.)

On August 11, 2026, County of LA was
dismissed without prejudice.

On August 20, 2026, Plaintiff filed an
Opposition to the Demurrer and a Request for Judicial Notice.

On August 25, 2026, City of Montebello
filed a Reply.

On August 26, 2026, Plaintiff filed a
Supplemental Request for Judicial Notice and Objections to Evidence Submitted
for the First Time with Defendant City of Montebello's Reply.

On August 28, 2026, Starbucks was
dismissed without prejudice.

II. Procedural Issues

As an initial matter, the Court notes
that the Demurrer's notice of hearing is defective as it refers to the original
hearing date prior to the Court's resetting of the hearing date on July 28,
2026. Further, there is no proof of service filed demonstrating the Court's
7/28/26 ruling was served.

However, given that the Opposition
provides the proper date, time, courthouse, department, and judicial officer

for the hearing on the Demurrer, the Court exercises its discretion to find notice of hearing of the Demurrer is satisfactory.

III.

Evidentiary

Objections

In response to the Reply, Plaintiff

objects to the new evidence filed in support of the Reply. The Court declines to consider the evidence submitted with the Reply. (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210 (“[T]he general rule of motion practice . . . is that new evidence is not permitted with reply papers”].)

IV.

Judicial

Notice Requests

In support of the Opposition,

Plaintiff requests the Court take judicial notice of the City of Montebello's Claim Form for the underlying incident, and Plaintiff's Complaint in this action. (Opp., RJN, pp. 2-3, Exhs. 1-2.)

The Court GRANTS the requests pursuant to Evidence Code section 452, subdivisions (c) and (d) but not as to the truth of the matters asserted in both exhibits.

In response to the arguments raised in

Reply, Plaintiff requests the Court take judicial notice of “[t]he City of Montebello's official published statement of the location of Montebello City Hall and of the place at which its City Council conducts its meetings.” (Supp. RJN, p. 2, Exh. 3.)

The Court DENIES this request as it is not relevant.

V.

Legal

Standard

“As a general matter, in a

demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

VI.

Discussion

A. Allegations in the Complaint

As to the City of Montebello, the Complaint alleges that City of Montebello is public entity. (Compl., p. 2, ¶ 5.)

The Complaint alleges a single cause of action for Premises Liability against the City of Montebello. (See Compl., PLD-PI-001(4) Attach.) The Complaint alleges that on May 22, 2025, the following events occurred:

Defendants negligently and/or recklessly, maintained, managed, operated, controlled, and safeguarded the premises at or near W. Whittier Blvd. & N Garfield Ave., Montebello, CA 90640, such that a pothole and/or open and/or exposed hole was allowed to exist and be left in disrepair. Defendants failed to barricade the area and/or to warn of the dangerous condition, rendering the area on said premises dangerous and resulting in serious bodily injury to the Plaintiff in the following manner: Plaintiff was exiting a bus on N Garfield Ave near 2501 W Whittier Blvd. when all of a sudden Plaintiff stepped into a pothole and/or open and/or exposed hole. This caused Plaintiff to fall and sustain serious injuries and damages. The actions of the Defendants and/or its employees were below the standard of care and was the cause of Plaintiff's injuries.

This claim is brought pursuant to Government Code Section 835 and 815.2.

Defendants, CITY OF MONTEBELLO; and DOES 1 through 50, were served with a claim for damages pursuant to Government Code Section 911.2 on or about November 19, 2025 and has not been rejected by an agent for Defendants CITY OF MONTEBELLO.

(Compl.,
MC-025 Attach.)

Finally,
the Complaint states City of Montebello owned public property on which a dangerous condition existed; the City of Montebello had actual and constructive notice of the existence of the dangerous condition in sufficient time prior to the injury to have corrected it; and the condition was created by employees of the City of Montebello. (Compl., PLD-PI-001(4) Attach., Prem. L-4.)

The
Complaint seeks compensatory damages. (Compl., ¶ 14.)

B. Meet and Confer

Code of Civil Procedure
section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or

by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Murray Decl.; 6/25/26 Decl.) According to the declaration, the parties' counsel spoke on June 1, 2026, and July 23, 2026, regarding the issues raised in the Demurrer to no avail. (Demurrer, Murray Decl., ¶¶ 11-12; 6/25/26 Decl., ¶ 2.)

Thus, the Court finds the meet and confer requirement is satisfied.

C. Analysis

City of Montebello demurs to the Complaint on the grounds that Plaintiff did not comply with the government claims requirement prior to filing the instant action, and the Complaint fails to state sufficient facts to plead a Premises Liability cause of action against City of Montebello. (Demurrer, pp. 3, 6-9.)

Government
Claims Act

Government
Code section 815.2 states:

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by

statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

(Gov. Code, § 815.2.)

Government

Code section 835 states:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

“A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action.” (Gov. Code, § 911.2.) Presentation of such a claim is a condition precedent to filing a suit against the public entity. (Cal. Gov. Code, § 945.4; see *DiCampi-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.)

Here, City of Montebello is a public entity, and the Complaint alleges that Plaintiff's injuries from City of

Montebello occurred on May 22, 2025, and “Defendants, CITY OF MONTEBELLO; and DOES 1 through 50, were served with a claim for damages pursuant to Government Code Section 911.2 on or about November 19, 2025 and has not been rejected by an agent for Defendants CITY OF MONTEBELLO.” (Compl., PLD-PI-001(4) Attach., MC-025 Attach.)

The Court finds that these allegations suffice to plead compliance with the Government Claims Act. (See Cal. Gov. Code, §§ 815.2, 835, 911.2, 945.4.)

To the extent City of Montebello requests the Court consider extrinsic evidence of declarations to determine the sufficiency of the Complaint, the Court finds this request to be inappropriate at this stage of the proceedings and in conjunction with a demurrer. The Court reminds City of Montebello that “[a] demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc., *supra*, 153 Cal.App.4th at p. 1315.) Further, while the Court acknowledges that a Court may take judicial notice of the filing of a government claim but not the truth of the claim “[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, [and] the governmental entity ... request[s] the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance,” the Court notes City of Montebello has made no such judicial notice request in support of the Demurrer. (See Evid. Code, § 452; *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1, 376.)

Premises

Liability

1. Defendant

was owner, occupant or lessor of premises;

2. Defendant

was negligent in the use, maintenance or management of premises;

3. Negligence

was a cause of injury, damage, loss or harm to plaintiff.

(*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d

1611, 1619.)

The elements of

a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Premises liability ‘ “is grounded in the possession of the premises and the attendant right to control and manage the premises” ’; accordingly, ‘ “mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” ’ But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. In determining whether a premises owner owes a duty to persons on its property, we apply the Rowland [Rowland v. Christian (1968) 69 Cal.2d 108 [70 Cal.Rptr. 97, 443 P.2d 561]] factors. Indeed, Rowland itself involved premises liability.’

(Kesner v.

Superior Court (2016) 1 Cal.5th 1132, 1159.)

Here, the Court finds the Complaint

states sufficient facts to constitute a premises liability cause of action

against City of Montebello. (See Compl.; see Brooks, supra, 215 Cal.App.3d at p. 1619; Gov. Code, §§ 815.2, 835.) Indeed, the Complaint alleges that

City of Montebello owned the public property on which the dangerous condition existed on May 22, 2025 (Compl., PLD-PI-001(4) Attach., Prem. L-1, L-4), and City of Montebello “negligently and/or recklessly, maintained, managed, operated, controlled, and safeguarded the premises at or near W. Whittier Blvd. & N Garfield Ave., Montebello, CA 90640, such that a pothole and/or open and/or exposed hole was allowed to exist and be left in disrepair.” (Compl., MC-025 Attach.) Further, the Complaint states

City of Montebello “failed to barricade the area and/or to warn of the dangerous condition, rendering the area on said premises dangerous and resulting in serious bodily injury to the Plaintiff in the following manner:

Plaintiff was exiting a bus on N Garfield Ave near 2501 W Whittier Blvd. when all of a sudden Plaintiff stepped into a pothole and/or open and/or exposed hole. This caused Plaintiff to fall and sustain serious injuries and damages.” (Compl., MC-025 Attach.)

Thus,

the Demurrer is OVERRULED.

VII.

Conclusion

& Order

For the foregoing reasons, Defendant

City of Montebello's Demurrer to the Complaint is OVERRULED.

Moving

party is ordered to give notice.